

***HEARING ON MOTION FOR DISCOVERY DEEM MATTERS ADMITTED AGAINST PLTF SRIDEVI KOTA
FILED BY: CAPITAL BENEFIT, INC.**

TENTATIVE RULING:

See Line No. 20.

22. 9:01 AM CASE NUMBER: C23-00098

CASE NAME: CARL PREWITT VS. TEXACO INC.

***HEARING ON MOTION FOR DISCOVERY ENTRY OF COMMISSION ORDERS FOR ISSUANCE OF OUT-
OF-STATE SUBPOENAS**

FILED BY: TEXACO INC.

TENTATIVE RULING:

Summary:

Defendant Texaco's Motion for Entry of a Commission Orders authorizing the issuance of out-of-state subpoenas to Plaintiff Carl Prewitt's medical providers in Alabama, including:

- 1) Grandview Medical Center
- 2) Grandview Diagnostic Center
- 3) Grandview Medical Group – Neurology
- 4) Grandview Medical Group - Neurosurgery
- 5) UAB Medicine Health Information Management
- 6) UAB St. Vincent's East
- 7) Nelms Pharmacy
- 8) Orthos Alabama Spine and Sports.

is **vacated** pursuant to Notice provided by Counsel Jennifer Bonneville on January 26, 2026. No appearance is necessary.

23. 9:01 AM CASE NUMBER: C23-02575

CASE NAME: MATTHEW ANDRADE VS. CHRIS PETLOCK

***HEARING ON MOTION FOR DISCOVERY MONETARY SANCTIONS IN THE AMOUNT OF \$46,343.15
FOR EGREGIOUS DISCOVERY MISCONDUCT**

FILED BY: ANDRADE, MATTHEW

TENTATIVE RULING:

The Court continues this Motion *sua sponte* to February 25, 2026 at 9:00 a.m. No appearance is required on January 28, 2026. The Parties are **ordered** to meet and confer by telephone, in-person or remote conference no later than February 15, 2026 to resolve this request for sanctions informally before the hearing of this motion. The Court orders the Parties to submit a declaration to the Court no later than five (5) days before the hearing to provide the court with a detailed account of the meet and confer discussions and any resolution of these issues.

This Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the discovery statutes. Before making a motion to compel, counsel are advised to consider carefully whether doing so is truly worthwhile. "Motions to compel and motion for sanctions should be considered a last resort when trying to prepare a case for

trial.” California Civil Discovery Practice (4th ed Cal CEB) §15.32.C.

Counsel are further admonished that Cal. Bus. & Prof. Code § 6086.7(a)(3) requires this Court to notify the State Bar of “the imposition of any judicial sanctions against an attorney, except sanctions for failure to make discovery or monetary sanctions of less than one thousand dollars (\$1,000.)” Cal. Bus. & Prof. Code § 6086.7(b) and Rule No. 10.609 also requires the court to notify the attorney involved that the matter has been referred to the State Bar. The Court interpret these rules liberally to mean that if the Court grants a discovery motion and sanctions and fees exceed \$1,000 against an attorney, the Court is required to report counsel to the State Bar. This is consistent with California Rules of Court Rule No. 10-609, Cal. Bus. & Prof. Code § 6086.7 and California Judges Association Formal Ethics Opinion No. 74 the mandatory duty to report the imposition of sanctions to the State Bar, as they exceed \$1,000. (*City of Los Angeles v. PWC LLP* (2024) 17 Cal.5th 46, 50). The Supreme Court held, in the *PWC* case, that the Discovery Act gives independent authority to the Courts to impose sanctions for discovery abuses and patterns of discovery abuses beyond specific provisions in the statutes.